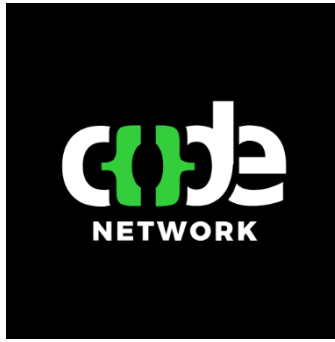




CONSTITUTION of **CODE NETWORK**

1. NAME	2
2. DEFINITIONS	2
3. AIMS AND OBJECTIVES	2
4. AFFILIATION	3
5. MEMBERSHIP	3
6. MEMBERSHIP FEE	4
7. EXECUTIVE	4
8. POWERS AND DUTIES OF THE EXECUTIVE	5
9. ELECTION OF OFFICE BEARERS	6
10. FINANCES	7
11. EXECUTIVE MEETINGS	7
12. GENERAL MEETINGS	8
13. ANNUAL GENERAL MEETINGS	8
14. TERMINATION OF MEMBERSHIP TO THE CLUB	9
15. TERMINATION OF THE TERMS OF OFFICE BEARERS	9
16. DISAFFILIATION	10
17. INTERPRETATION OF THIS CONSTITUTION	11
18. ALTERATION OF THIS CONSTITUTION	11
19. ENACTMENT	11

1. NAME

- 1.1 The name of the Club shall be Code Network and herein referred to as the “Club.”

2. DEFINITIONS

- 2.1 **Admin Team** means the Top 4 Executives of the Club (President, Vice-President, Treasurer, and Secretary).
- 2.2 **AGM** means the Annual General Meeting of the Club.
- 2.3 **SGM** means a Special General Meeting of the Club.
- 2.4 **Associate Member** shall have the meaning given to it in clause 5.1.ii.
- 2.5 **CC** means the Clubs Coordinator; that is, the Guild staff member in that position.
- 2.6 **CSC** means the Clubs & Societies Committee.
- 2.7 **Executive** shall have the meaning given to it in clause 7.1.
- 2.8 **Executive Member** means the members of the Executive.
- 2.9 **Coordinator** shall have the meaning given to it in clause 7.5.
- 2.10 **Officer** shall have the meaning given to it in clause 7.6.
- 2.11 **Office Bearer** shall have the meaning given to it in clause 7.9.
- 2.12 **Acting** means a temporary appointment to perform the duties of an Executive position until the position is filled at a GM in accordance with this constitution.
- 2.13 **GM** means a General Meeting of the Club. This definition includes AGMs and SGMs.
- 2.14 **Guild** means the Queensland University of Technology Student Guild.
- 2.15 **Member** shall have the meaning given to it in clause 5.1.
- 2.16 **Student** means a person enrolled in a course or unit of study at the Queensland University of Technology.
- 2.17 **CSO** means the Clubs & Societies Officer; that is, the Guild office bearer in that position.

3. AIMS AND OBJECTIVES

- 3.1 The aims and objectives of the Club shall be:
- i Share knowledge from alumni, professionals, and leaders in the tech industry.
 - ii Collaborate, practice, and develop skills in creating quality tech projects.
 - iii Provide opportunities for members to meet, connect, and network with students and the broader tech community.

- 3.2 The motto of the Club shall be:
- i **“Build anything, as long as it’s awesome.”**

4. AFFILIATION

- 4.1 The Club shall be affiliated with QUT Student Guild (the Guild).
- 4.2 The Club must, as a condition of its affiliation, enter into and comply with an Affiliation Agreement set by the Guild each year.
- 4.3 The Guild may suspend or terminate its affiliation with the Club for a breach of this Constitution or the Affiliation Agreement.

5. MEMBERSHIP

Categories of Membership

- 5.1 The Club shall offer membership as outlined in its Constitution. These categories are determined by enrolment status at the Queensland University of Technology (QUT) at the time of application:
- i **Student Membership** is open to individuals who are enrolled at QUT;
 - ii **Associate Membership** is open to individuals who are not enrolled at QUT.

Conditions of Membership

- 5.2 Membership is subject to the provisions of this Constitution and the Affiliation Agreement.
- 5.3 The Executive may decline a membership application or revoke membership where the individual:
- i has engaged in conduct, as a member of the Club, that has breached this Constitution or the Affiliation Agreement; or
 - ii has engaged in conduct, as a member of another Guild affiliated body, that resulted in their suspension or expulsion; or
 - iii is otherwise deemed to pose a risk to the safety, reputation, or lawful operation of the Club.
- 5.4 The Executive must decline a membership application where the individual:
- i would cause the Club to fall below a minimum requirement of at least **two-thirds (2/3)** of its total membership to be Student Members.

Rights of Members

- 5.5 Student Members and Associate Members have the right to attend Club activities and access Club entitlements in accordance with this Constitution and any conditions set by the Executive (including payment terms), noting that some

activities or entitlements may be restricted or otherwise limited by eligibility, capacity, safety, or compliance requirements.

- 5.6 Student Members and Associate Members have the right to access the Club's constitution, regulations, policies, and meeting minutes (except where minutes are deemed commercial-in-confidence by the Executive).
- 5.7 Student Members and Associate Members have the right to access approved meeting minutes of the Executive, except where the contents are deemed confidential by the Executive.

6. MEMBERSHIP FEE

- 6.1 The membership fee of the Club shall be set by the Admin Team at the beginning of each calendar year.
- 6.2 The membership fee will be paid by Club members annually or at another frequency set by the Admin Team.

7. EXECUTIVE

Composition

- 7.1 The Executive shall consist of:
 - i President
 - ii Vice-President
 - iii Secretary
 - iv Treasurer
 - v Any Coordinator roles created by the Club in accordance with clause 7.5

Minimum Executive Requirement

- 7.2 The Executive must consist of no fewer than four (4) Student Members, being the President, Vice-President, Secretary, and Treasurer.

Eligibility

- 7.3 Only Student Members are eligible to hold Executive positions.

Coordinators

- 7.4 The Club may create, modify, or remove Coordinator roles by resolution at a GM.
- 7.5 Coordinator roles may oversee any operational area of the Club, including but not limited to projects, events, marketing, industry, or community engagement.

Officers

- 7.6 The Club may appoint Officers to support Coordinators in the operation of their teams. Officers are **not** members of the Executive.
- 7.7 Officer roles may include, but are not limited to: Projects Officer, Events Officer, Marketing Officer, Industry Liaison, or any other Officer roles determined by the Club.
- 7.8 Officer roles may be held by Student Members or Associate Members.

Office Bearers

- 7.9 For the purposes of this Constitution, **Office Bearers** include all Executive Members and all Officers appointed under clause 7.6.

8. POWERS AND DUTIES OF THE EXECUTIVE

- 8.1 The Executive of the Club shall:
 - i Act in accordance with the aims and objectives of the Club.
 - ii At all times be subject to the decisions of any GM of the Club.
 - iii Have the power to make regulations necessary to put into effect this Constitution.
 - iv Have the power to make or alter policy decisions which shall be binding unless altered or reversed by a GM of the Club.
 - v Have the power to conduct activities in the name of the Club and shall be responsible for arranging all the activities of the Club.
 - vi Have the power to fill casual vacancies created during its term of office following a GM, subject to their confirmation at the next GM of the Club.
 - vii Be responsible for keeping records of all the Club's proceedings.
 - viii Handle and keep records of all the Club's finances.
 - ix Maintain regular contact with the Guild.
 - x Ensure the Club abides by all relevant Guild regulations, policies, and terms of reference.
- 8.2 The President of the Club shall:
 - i In the absence of a resolution of a GM or an Executive Meeting, exercise the powers and duties of the Executive.
 - ii Convene and chair all General Meetings and Executive Meetings.
 - iii Represent the members of the Club in accordance with the aims and objectives of the Club.

- iv Have the casting vote at all meetings.
- v Have all decisions relating to the Club made by themselves ratified at an Executive Meeting.

9. ELECTION OF OFFICE BEARERS

Nominations

- 9.1 Nominations for Office Bearer positions (including Executive positions) will be called at least **seven (7) days** before a GM.
- 9.2 Nominations for Office Bearer positions may be submitted in writing to the Secretary before a GM. Nominations will also be accepted from the floor immediately before the election for each position is held.
- 9.3 Should a position be contested, an election shall occur.

Election Management

- 9.4 Voting for elections will be conducted by either secret ballot or show of hands. Members attending remotely may vote using an equivalent online method that preserves the confidentiality and integrity of the vote, as determined by the Electoral Officer.
- 9.5 The President shall act as the Electoral Officer unless they are a nominee for any position, in which case another Executive Member will be appointed as Electoral Officer by the GM. If all Executive Members are nominees, an Officer or Student Member shall be appointed as Electoral Officer by the GM.
- 9.6 The Electoral Officer is responsible for conducting the election and declaring its results.
- 9.7 The Electoral Officer must declare the vote count when announcing the election results.
- 9.8 The Electoral Officer will ratify the election results.
- 9.9 Where multiple individuals are to be elected to the same Office Bearer role, each vacancy shall be treated as a separate position. A separate election shall be conducted for each position, and Members may nominate and vote in each election.
- 9.10 Members may be nominated for multiple Officer Bearer positions. However, once a Member is successfully elected to a position, all their remaining nominations for other positions are automatically withdrawn.
- 9.11 Elections must be conducted in the following order:
 - i President
 - ii Vice-President
 - iii Secretary

- iv Treasurer
- v All Coordinator positions
- vi All Officer positions

9.12 Where a vacancy arises between GMs:

- i For Executive positions, the Executive may appoint an **Acting** Executive Member to server until the next GM, at which the position must be filled **by election**.
 - A. Any Acting Executive appointment must be reported to Members within **seven (7)** days and minuted at the next GM.
- ii For Officer positions, the Executive may appoint a replacement, subject to ratification at the next GM.

10. FINANCES

- 10.1 All monies acquired or raised by the Club shall be deposited into a bank account at National Australia Bank.
- 10.2 The signatories of the Club's bank account shall be:
 - i At least **two (2)** Executive Members; and
 - ii The CC.
- 10.3 The financial period of the Club ends on 30 November each year.
- 10.4 Proper financial records shall be kept and maintained correctly showing the financial affairs of the Club.
- 10.5 All Club funds must be used solely for the purposes consistent with the objectives of the Club.
- 10.6 No income or property of the Club may be paid or transferred directly or indirectly to any member, except where payment is made for goods or services provided to the Club on terms approved by the Executive.

11. EXECUTIVE MEETINGS

- 11.1 Executive Meetings should be held as required by the Club Executive to discharge their powers and duties in accordance with clause 8.1.
- 11.2 Proxies are not permitted.
- 11.3 Quorum is a majority of the Executive.
- 11.4 An online attendance option must be offered for all Executive Meetings, and Executive Members attending online shall be considered present for the purposes of quorum and voting.

12. GENERAL MEETINGS

- 12.1 GMs should be held as required by the Club.
- 12.2 Proxies are not permitted.
- 12.3 A GM of the Club shall abide by the standing orders prescribed in the Guild Regulations or those approved by the GM.
- 12.4 Quorum shall be **10%** of the Student Membership.
- 12.5 At least **seven (7) days'** written notice of a GM must be provided to all members, specifying the date, time, location, and business to be considered. This notice must be distributed through at least **two (2)** communication channels used by the Club.
- 12.6 If a quorum is not present within **thirty (30) minutes** of the scheduled start time, the meeting shall be adjourned to a date not more than **fourteen (14) days** later, and notice shall be given to all members.
- 12.7 Only Student Members have the right to move motions and vote at GMs.
- 12.8 An online attendance option must be offered for all GMs, and Student Members attending online shall be considered present for the purposes of quorum and voting.
- 12.9 Unless otherwise specified in this Constitution, motions are passed by a **simple majority (50% + 1)** of Student Members present and voting.

13. ANNUAL GENERAL MEETINGS

- 13.1 For clarity, clause 12 is effective on AGMs.
- 13.2 The AGM shall be held during the Guild's Universal AGM Period, from August 1st to October 31st, and must elect Executive Members for the following term of office.
- 13.3 The Executive shall set a date, time, and venue for the AGM.
- 13.4 At least **fourteen (14) days'** written notice of the AGM must be provided to all members, specifying the date, time, location, and business to be considered. This notice must be distributed through at least **two (2)** communication channels used by the Club.
- 13.5 The CSO and the CC must be advised of the AGM details at least fourteen (14) days prior to the meeting.
- 13.6 The purpose of the AGM shall be:
 - i To receive the annual reports from:
 - A. President
 - B. Treasurer
 - C. Any other deemed relevant Executive

- ii To elect or ratify the election of a new Club Executive as specified under clause 7.1.
- iii To elect or ratify the election of new Officers as specified under clause 7.6.
- iv To issue the Club's financial records or audited books for the past twelve (12) months or since the last AGM.
- v To discuss any business duly brought before the meeting.

13.7 Proxies are not permitted at AGMs.

14. TERMINATION OF MEMBERSHIP TO THE CLUB

14.1 A person will cease to hold membership of the Club:

- i By a resolution passed by a **two-thirds (2/3)** majority at a GM on the grounds that the person is guilty of conduct detrimental to the interests of the Club; or
- ii If the person resigns from the Club; or
- iii If the person does not renew their membership on an annual basis; or
- iv If the CSC deems the removal necessary in the interest of the Club and/or the Guild.

15. TERMINATION OF THE TERMS OF OFFICE BEARERS

Executive Members

15.1 An Executive Member will cease to hold their position:

- i If they cease to be a Student; or
- ii By a resolution passed by a **two-thirds (2/3)** majority at a GM; or
- iii By a resolution passed by a **simple majority (50% + 1)** at an Executive Meeting, provided that at least **seven (7)** days' written notice of that Executive Meeting has been given to all Executive Members.
- iv If they resign from the Executive or the Club; or
- v Upon the appointment of a new Executive in accordance with clause 13.0.

15.2 In the event an Executive position is left vacant after an Executive Member ceases to hold their position, a GM must be called to elect a new Executive Member in the vacant position.

- 15.3 Until a new Executive Member is elected at a GM, the President (or in their absence, the Vice-President) becomes responsible for either exercising or delegating the responsibilities of the vacant position.
- 15.4 Despite clause 15.2, the Executive may appoint an Acting Executive Member to perform the duties of the vacant position until the next GM, at which a formal election must be held to fill the vacancy.

Officers

- 15.5 An Officer will cease to hold their position:
- i By a resolution passed by a **two-thirds ($\frac{2}{3}$)** majority at a GM; or
 - ii By a resolution passed by a simple **majority (50% + 1)** at an Executive Meeting, provided that at least **seven (7)** days' written notice of that Executive Meeting has been given to all Executive Members.
 - iii If they resign from their Office or the Club; or
 - iv Upon the appointment of a new Officer in their position in accordance with clause 13.0.
- 15.6 In the event an Officer position is left vacant after an Officer ceases to hold their position, the Executive may appoint a replacement, subject to ratification at the next GM.

16. DISAFFILIATION

- 16.1 The Club will cease to be affiliated with the Guild if:
- i Its membership falls below **twenty (20)**; or
 - ii Its membership comprises of less than **70%** students; or
 - iii It fails to comply with the policies or regulations of the CSC or the Guild; or
 - iv It is on probation for a period of more than **six (6)** months; or
 - v The QUT Student Guild Council votes in favour of disaffiliation the Club; or
 - vi By resolution of the Executive, the Club undergoes voluntary dissolution.
- 16.2 Upon disaffiliation of the Club, all equipment and funds will become property of the Guild.
- 16.3 The Club must be given at least **one (1)** month's written notice of the intended disaffiliation.

17. INTERPRETATION OF THIS CONSTITUTION

- 17.1 The interpretation of this Constitution shall be the responsibility of the Guild via the CC or the CSO.
- 17.2 Where this Constitution is silent, the Executive shall act in what it considers to be the best interest of the Club, in accordance with the aims and objectives of the Club. Such action will be subject to confirmation by the next GM.

18. ALTERATION OF THIS CONSTITUTION

- 18.1 To be a valid Constitutional amendment, the amendment must be approved by:
- i The Guild via the CSO or the CC; then
 - ii By resolution of at least **two-thirds ($\frac{2}{3}$)** majority at a GM of the Club.

19. ENACTMENT

This constitution shall take effect and deemed enacted as from the

_____ Day of the _____ Month _____ Year

Position of Club Executive: _____

_____ Dated: _____

Signature

Print Name

Guild Clubs Officer: _____

_____ Dated: _____

Signature

Print Name